

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

CURTIS JACKSON,

Plaintiff,

FILING: 9/26/22
INDEX NO. /22
Plaintiff designates
Richmond County the
Place of Trial

-against-

**CITY OF NEW YORK, POLICE OFFICER
JOHN FABRIZIO (Shield no. 24129),
and POLICE OFFICERS JOHN DOE #1
THROUGH #5,**

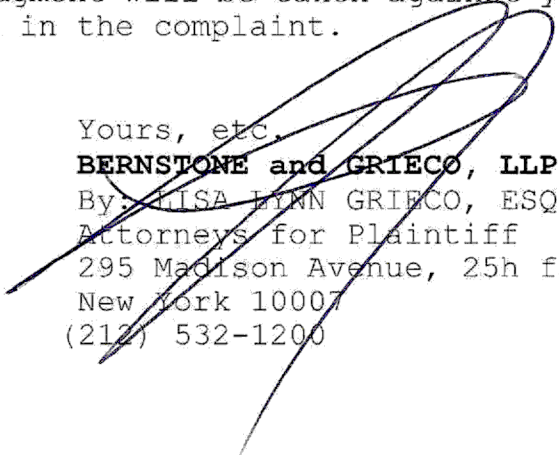
Defendants.

S U M M O N S
Basis of Venue:
Locus of Occurrence
**140 Marsh Avenue
Staten Island, NY**

To the above named Defendants:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 26, 2022

Yours, etc.
BERNSTONE and GRIECO, LLP
By:  **LISA LYNN GRIECO, ESQ.**
Attorneys for Plaintiff
295 Madison Avenue, 25th floor
New York 10007
(212) 532-1200

Defendants' Addresses:

THE CITY OF NEW YORK,
100 Church Street
New York, New York 10007

POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)
c/o New York City Police Department 121st Precinct,
1 Police Plaza, New York, NY

JOHN DOE #1 THROUGH #5: c/o New York City Police Department 121st
Precinct, 1 Police Plaza, New York, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

FILING: 9/26/22
INDEX NO. /22

CURTIS JACKSON,

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, POLICE OFFICER
JOHN FABRIZIO (Shield no. 24129)
and POLICE OFFICERS JOHN DOE #1
THROUGH #5,

Defendants.

Plaintiffs, by his attorneys, **BERNSTONE and GRIECO, LLP**,
complaining of the defendants herein, respectfully show to this
Court, and allege as follows:

1. That at all times hereinafter mentioned, plaintiff, CURTIS JACKSON, was and remains a resident of the County of Richmond City and State of New York.
2. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, was and remains a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, defendant, CITY OF NEW YORK, maintains a police force known as THE NEW YORK CITY POLICE DEPARTMENT.

4. That plaintiff, CURTIS JACKSON has complied with all the conditions precedent to the bringing of this action and have complied with the provisions of the statutes in such cases as made and provided.
5. That plaintiff, CURTIS JACKSON, has presented a proper Notices of Claim to defendants.
6. That more than thirty (30) days have elapsed since the presentation by plaintiff of said Notice of Claim and said claims remain unadjusted.
7. That said Notice of Claim was served upon defendants within ninety (90) days from the happening of the negligence of defendant, THE CITY OF NEW YORK, as hereinafter described and sued upon.
8. That the within action is being commenced by service of a Summons and Verified Complaint within one (1) year and ninety (90) days from the date that the within causes of action arose.
9. The defendants have conducted a 50-H Hearing of plaintiff, CURTIS JACKSON, on or about September 20, 2022.

10. That on or about April 1, 2022 and at all times hereinafter mentioned and upon information and belief, defendants, CITY OF NEW YORK, employed defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)**, as agent, servant and/or employee.
11. That on or about April 1, 2022 and at all times hereinafter mentioned and upon information and belief, defendants, CITY OF NEW YORK, employed defendants **POLICE OFFICERS JOHN DOE #1 THROUGH #5.**, as agents, servants and/or employees.
12. That on April 1, 2022, defendant, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** was an employee of defendant, THE CITY OF NEW YORK, duly appointed and acting as a police officer in the NEW YORK CITY POLICE DEPARTMENT and was an agent, servant, and/or employee of defendant, CITY OF NEW YORK, acting in the course and scope of his employment as such and in furtherance of the interests and business of said employer.
13. That on April 1, 2022, defendants, **JOHN DOE #1 THROUGH #5**, were employees of defendant, THE CITY OF NEW YORK, duly appointed and acting as a police officers in the NEW YORK CITY POLICE DEPARTMENT and were agents, servants, and/or employees of defendant, CITY OF NEW YORK, acting in the course and scope of their employment as such and in furtherance of the

interests and business of said employer.

14. That at all times mentioned herein, the individual defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** and **POLICE officers JOHN DOE #1 THROUGH #5**, were acting under color of state law, to wit, under color of statutes, ordinances, regulations, policies, customs, and usages of the City and the State of New York.
15. That at all times relevant herein, defendant, CITY OF NEW YORK, operated, maintained, managed, supervised and controlled a police department as part of and in conjunction with its municipal functions.
16. Upon information and belief, defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** and **POLICE officers JOHN DOE #1 THROUGH #5**, were graduates of The Police Academy of The City of New York.
17. At all times relevant hereto, defendant, THE CITY OF NEW YORK, had the duty to competently and sufficiently train, within the Police Academy and at the Command, Precinct and Patrol levels, the defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** and **POLICE officers JOHN DOE #1 THROUGH #5**, to conform

their conduct to a standard for the protection of individuals, such as plaintiff, CURTIS JACKSON, against the unreasonable risk of harm by conducting themselves in such a manner so as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as plaintiff, CURTIS JACKSON, as described herein.

18. At all times relevant hereto, defendant, THE CITY OF NEW YORK, had the duty to competently and sufficiently train within the Police Academy and at the Command, Precinct and Patrol levels the defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** and **POLICE officers JOHN DOE #1 THROUGH #5**, in the protection of the rights of plaintiff, CURTIS JACKSON, under the Constitution and the Bill of Rights.
19. At all times hereinafter mentioned, upon information and belief, defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** and **POLICE officers JOHN DOE #1 THROUGH #5**, were acting in their capacities as employees, agents or servants of defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
20. At all times hereinafter mentioned, defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** and **POLICE officers JOHN DOE**

#1 THROUGH #5, were acting under color of law.

21. At all times hereinafter mentioned, the acts of defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** and **POLICE officers JOHN DOE #1 THROUGH #5**, constituted state action.

22. That on or about April 1, 2022, defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** and **POLICE officers JOHN DOE #1 THROUGH #5**, were on duty and/or acting as employees, agent, or servants of defendant, THE CITY OF NEW YORK, and were also present at the same time and in the same place as plaintiff, CURTIS JACKSON, as aforesaid.

23. That on April 1, 2022, at all times as stated herein, plaintiff, CURTIS JACKSON, was a lawful citizen abiding by all laws, statutes and ordinances of the City and State of New York and the United States of America.

24. That on April 1, 2022, plaintiff, CURTIS JACKSON, was lawfully present at JC Penney, Staten Island Mall, 140 Marsh Avenue, Staten Island, NY on April 1, 2022 at approximately 4:30, County of Richmond, and State of New York.

25. That on April 1, 2022, defendants, **POLICE OFFICER JOHN**

FABRIZIO (Shield no. 24129) and **POLICE OFFICERS JOHN DOE #1 THROUGH #5**, unlawfully apprehended, arrested and detained plaintiff, CURTIS JACKSON, at the aforesaid location.

26. That on April 1, 2022, defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** and **POLICE OFFICERS JOHN DOE #1 THROUGH #5**, seized plaintiff, CURTIS JACKSON unlawfully and without cause, threw him about into a cloths rack and to the ground, and proceeded to assault and batter him.
27. That on April 1, 2022, defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** and **POLICE OFFICERS JOHN DOE #1 THROUGH #5**, employees of defendant, THE CITY OF NEW YORK, with disregard for proper, lawful, appropriate, correct and effective investigative behaviors and procedures, stopped, detained and arrested plaintiff, CURTIS JACKSON, when it was not right, just, lawful, proper or necessary to do so.
28. That on April 1, 2022, at all relevant times herein, notwithstanding that the apprehension, arrest and detention was unjust, unwarranted, without cause, with excessive force and unlawful, plaintiff, CURTIS JACKSON complied with the officers' commands and did not resist.

29. That on April 1, 2022, defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** and **POLICE OFFICERS JOHN DOE #1 THROUGH #5**, employees of defendant, THE CITY OF NEW YORK, used excessive force and deadly physical force upon plaintiff, CURTIS JACKSON, causing him to sustain severe and permanent injuries.
30. That on April 1, 2022, defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** and **POLICE OFFICERS JOHN DOE #1 THROUGH #5**, employees of defendant, THE CITY OF NEW YORK, while acting in concert, maliciously and with the intent to injure plaintiff, CURTIS JACKSON, and without just cause or any right to do so, handcuffed, detained, jailed and restrained plaintiff, CURTIS JACKSON, against his own will, thereby depriving him of his liberty.
31. That the arrest of plaintiff, CURTIS JACKSON, was perpetrated by the individual defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** and **POLICE officers JOHN DOE #1 THROUGH #5**, without a warrant or other legal process and without probable cause.
32. That on April 1, 2022, during the unlawful apprehension, detention, assault and battery of plaintiff, CURTIS JACKSON, defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)**

and **POLICE OFFICERS JOHN DOE #1 THROUGH #5**, used excessive, unnecessary, and unwarranted force upon plaintiff, CURTIS JACKSON.

33. That at all times relevant herein, defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** and **POLICE OFFICERS JOHN DOE #1 THROUGH #5**, handcuffed plaintiff, CURTIS JACKSON, unnecessarily and unreasonably tight and painfully restrained his arms behind his back, thereby causing him injury.
34. That on April 1, 2022 defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** and **POLICE OFFICERS JOHN DOE #1 THROUGH #5**, for no reason at all, assaulted plaintiff, CURTIS JACKSON, and battered him about his head, neck, torso and lower body.
35. That on April 1, 2022 defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** and **POLICE OFFICERS JOHN DOE #1 THROUGH #5**, for no reason at all, assaulted plaintiff, CURTIS JACKSON, and battered him about his head, neck, torso and lower body. thereby causing him injury and severe pain.
36. That at all times relevant herein, plaintiff, CURTIS JACKSON, suffered extreme and protracted pain to his face, head, neck, back and limbs as a result of the excessive force used by

defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)**
and **POLICE OFFICERS JOHN DOE #1 THROUGH #5.**

37. That on April 1, 2022 defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** and **POLICE OFFICERS JOHN DOE #1 THROUGH #5**, had no cause or basis to stop, detain, batter, assault, or arrest plaintiff, CURTIS JACKSON.
38. That on April 1, 2022 defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** and **POLICE OFFICERS JOHN DOE #1 THROUGH #5**, falsely detained plaintiff, CURTIS JACKSON, for no reason and without probable cause to do so, then assaulted plaintiff, CURTIS JACKSON, and battered him, as described above.
39. That on April 1, 2022 defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** and **POLICE OFFICERS JOHN DOE #1 THROUGH #5**, placed plaintiff, CURTIS JACKSON, under arrest for crimes that he did not commit.
40. That at all times relevant herein, plaintiff, CURTIS JACKSON was unlawfully held and imprisoned at the 121ST Precinct by defendants, their agents, servants and/or employees, and was placed into a holding cell upon the defendants'.

41. That at all times relevant herein, plaintiff, CURTIS JACKSON, was wrongfully held at the 121st Precinct, without proper medical attention, up until the time defendants contacted an ambulance, and up until the time that medical attention had arrived, plaintiff, CURTIS JACKSON, had injuries and open wounds which, by the defendants' gross negligence and/or recklessness, were perpetuated and exacerbated by defendants' failure to impart necessary and expeditious medical attention to plaintiff, CURTIS JACKSON.
42. That at all times relevant herein, plaintiff, CURTIS JACKSON was transported to the nearby Richmond University Medical Center, where he was unlawfully handcuffed to both his stretcher during his transport, and to his hospital bed during his stay in said hospital.
43. That at all times relevant herein, defendants, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)** and **POLICE OFFICERS JOHN DOE #1 THROUGH #5**, acted maliciously and intentionally.
44. That at all times relevant herein, the arrest, assault, battery, and detention of plaintiff, CURTIS JACKSON, was unlawful, unwarranted and unjustified.

45. That at all times herein mentioned, and without proof that plaintiff, CURTIS JACKSON, was in any way connected to a crime, or that any crime was, in fact, committed, and without reasonable suspicion to stop plaintiff, CURTIS JACKSON, and without probable cause to detain or arrest plaintiff, CURTIS JACKSON, defendants, their agents, servants and/or employees individually, and acting in concert, knowingly, unlawfully and wrongfully fabricated charges against plaintiff, plaintiff, CURTIS JACKSON, and set these charges forth in false and fabricated criminal complaints, falsely sworn by defendant, **POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)**
46. The criminal complaint and reports against plaintiff, CURTIS JACKSON, were and are false and fraudulent.
47. That notwithstanding the fact that defendants, their agents, servants and/or employees knew or reasonably should have known that the criminal complaint, report and charges against plaintiff, CURTIS JACKSON, were false and fraudulent, defendants, their agents, servants and/or employees maliciously prosecuted plaintiff, CURTIS JACKSON, and forced him to defend himself in court against the false charges.
48. By reason of the foregoing acts of the defendants, plaintiff,

CURTIS JACKSON, was unlawfully arrested and forced to repeatedly return to court to defend himself against the fraudulent charges.

49. By reason of the foregoing acts of the defendants, and as a direct and proximate result of the acts of the defendants, plaintiff, CURTIS JACKSON, suffered severe and permanent personal injuries and damages, and upon information and belief, will continue to suffer pain in the future.
50. By reason of the foregoing acts of the defendants, plaintiff, CURTIS JACKSON, was caused severe and intense emotional anguish, distress and embarrassment and will continue to suffer the same in the future.
51. By reason of the foregoing, plaintiff, CURTIS JACKSON, was compelled to, and did necessarily, require medical attention and did necessarily pay and become liable therefore, and will necessarily continue to incur similar expenses in the future.
52. By reason of the foregoing, plaintiff, CURTIS JACKSON, was compelled to, and did necessarily, incur legal fees and did necessarily pay and become liable therefore, and will necessarily incur similar legal fees in the future.

AS AND FOR A FIRST CAUSE OF ACTION

AGAINST INDIVIDUAL DEFENDANTS,
CITY OF NEW YORK, POLICE OFFICER
JOHN FABRIZIO (Shield no. 24129)
121nd PRECINCT and POLICE OFFICERS
JOHN DOE #1 THROUGH #5,
IN VIOLATION OF CIVIL RIGHTS AFFORDED BY
42 U.S.C §1983 AND 42 U.S.C. §1985,
ON BEHALF OF PLAINTIFF, CURTIS JACKSON

53. plaintiff, CURTIS JACKSON, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 52, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.
54. The defendants, acting in concert and individually and under the color of law, have deprived plaintiff, CURTIS JACKSON of his civil, constitutional and statutory rights and have conspired to deprive plaintiff, CURTIS JACKSON, of such rights under 4th and 14th amendments and are liable to plaintiff, CURTIS JACKSON, under the 5th amendment, 8th amendment, 42 U.S.C. §1983 and 42 U.S.C. §1985.
55. Plaintiff, CURTIS JACKSON, is not subject to limitations of Article 16 of the CPLR pursuant to exclusions therein.
56. As a result of the foregoing, plaintiff, CURTIS JACKSON suffered injuries including but not limited to severe and permanent personal physical injuries, loss of freedom, loss of

enjoyment of life, had his civil liberties violated, severe and permanent emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, shame, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

FOR MUNICIPAL LIABILITY AGAINST DEFENDANTS,
CITY OF NEW YORK, POLICE OFFICER
JOHN FABRIZIO (Shield no. 24129)
121nd PRECINCT and POLICE OFFICERS
JOHN DOE #1 THROUGH #5,
IN VIOLATION OF CIVIL RIGHTS AFFORDED BY
42 U.S.C. §1983 AND 42 U.S.C. §1985,
ON BEHALF OF plaintiff, CURTIS JACKSON

57. Plaintiff, CURTIS JACKSON, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 56, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.
58. Defendants, THE CITY OF NEW YORK, knew or should have known of its employees', agents' and/or servants' propensity to engage in the illegal and wrongful acts detailed above.
59. Prior to April 1, 2022 defendant, THE CITY OF NEW YORK developed and maintained policies and/or customs exhibiting

deliberate indifference to the constitutional rights of persons in the City of New York, which policies and/or customs caused the violation of the rights of plaintiff, CURTIS JACKSON.

60. Upon information and belief, it was the policy and/or custom of the defendant, THE CITY OF NEW YORK, to improperly and inadequately investigate citizen and other complaints of police misconduct, and acts of misconduct were instead tolerated by the defendants, CITY OF NEW YORK including, but not limited to the incidents where defendants and their supervisors have in the past falsely arrested individuals without probable cause, and made, and allowed other fellow police officers and other employees to make false entries in official police department records, and to issue false and fraudulent criminal complaints and accusatory instruments, to cover up and hide its wrongful conduct.
61. It was the policy and/or custom of the defendant, CITY OF NEW YORK, to fail to take the steps to discipline, train, supervise or otherwise correct the improper, illegal conduct of the individual defendants in this and in similar cases involving misconduct, thereby failing to adequately discourage further constitutional violations on the part of its police

officers. The defendant, THE CITY OF NEW YORK did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.

62. As a result of the above described policies and or customs, police officers employed by defendant, THE CITY OF NEW YORK believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.
63. The above policies and/or customs demonstrated a deliberate indifference on the part of the policymakers of the defendant, THE CITY OF NEW YORK, to the constitutional rights of persons within the City of New York and were the direct and proximate cause of the violation of the rights of plaintiff, CURTIS JACKSON.
64. Plaintiff, CURTIS JACKSON, is not subject to limitations of Article 16 of the CPLR pursuant to exclusions therein.
65. As a result of the foregoing, plaintiff, CURTIS JACKSON, suffered injuries including but not limited to severe and permanent personal physical injuries, loss of freedom, loss of enjoyment of life, had his civil rights violated, severe and permanent emotional injuries, severe and permanent

psychological injuries, anguish, distress, humiliation, embarrassment, shame, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

FOR UNREASONABLE AND EXCESSIVE FORCE,
IN VIOLATION OF CIVIL RIGHTS
AFFORDED BY 42 U.S.C. §1983,
ON BEHALF OF plaintiff, CURTIS JACKSON

66. Plaintiff, CURTIS JACKSON, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 65, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.
67. By their conduct, defendants, **CITY OF NEW YORK, POLICE OFFICER JOHN FABRIZIO (Shield no. 24129), POLICE OFFICERS JOHN DOE #1 THROUGH #5**, under color of law, deprived plaintiff, CURTIS JACKSON, of his constitutional rights to be free from excessive and unreasonable force.
68. Plaintiff, CURTIS JACKSON, is not subject to limitations of Article 16 of the CPLR pursuant to exclusions therein.
69. Plaintiff, CURTIS JACKSON, claims compensatory and punitive

damages for the injuries set forth above and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

FOR DELAY AND DENIAL OF MEDICAL TREATMENT
AND FAILURE TO PROTECT WHILE IN CUSTODY,
IN VIOLATION OF CIVIL RIGHTS
AFFORDED BY 42 U.S.C. §1983,
ON BEHALF OF Plaintiff, CURTIS JACKSON

70. Plaintiff, CURTIS JACKSON, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 69, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.
71. By their conduct and under color of law, defendants, **CITY OF NEW YORK, POLICE OFFICER JOHN FABRIZIO (Shield no. 24129), POLICE OFFICERS JOHN DOE #1 THROUGH #5** deprived Plaintiff, CURTIS JACKSON, of his constitutional rights to immediate medical treatment and failed to protect him once he became a prisoner, thus perpetuating and exacerbating his physical and mental pain and suffering.
72. Plaintiff, CURTIS JACKSON, is not subject to limitations of Article 16 of the CPLR pursuant to exclusions therein.
73. As a result of the foregoing, Plaintiff, CURTIS JACKSON,

suffered injuries including but not limited to severe and permanent personal physical injuries, loss of freedom, loss of enjoyment of life, had his civil rights violated, severe and permanent emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, shame, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

FOR NEGLIGENCE,
ON BEHALF OF Plaintiff, CURTIS JACKSON

74. Plaintiff, CURTIS JACKSON, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 73, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.
75. That defendants, **CITY OF NEW YORK, POLICE OFFICER JOHN FABRIZIO (Shield no. 24129), POLICE OFFICERS JOHN DOE #1 THROUGH #5**, were negligent in failing to use such care in the performance of police duties as a reasonably prudent and careful police officer would have used under similar circumstances, without any negligence on the part of plaintiff, CURTIS JACKSON, contributing thereto; and

defendant, CITY OF NEW YORK, was negligent in hiring and retaining persons who were unfit to serve as police officers and who they knew or should have known had dangerous propensities and lack of proper temperament, in that defendant, CITY OF NEW YORK, failed to exercise reasonable precautions in employing the aforesaid police officers and failing to properly investigate their background and that these police officers were otherwise unfit to serve as police officers for the defendant, CITY OF NEW YORK and defendant, CITY OF NEW YORK was negligent in their instructions of their police officers by not exercising care in instructing them as to their deportment, behavior and conduct as police officers and as representatives of defendants, CITY OF NEW YORK and in training and instructing, among other things, of the proper conduct of police officers in making an arrest and what they should do following an arrest of an individual.

76. Plaintiff, CURTIS JACKSON, is not subject to limitations of Article 16 of the CPLR pursuant to exclusions therein.
77. As a result of the foregoing, Plaintiff, CURTIS JACKSON, suffered injuries including but not limited to severe and permanent personal physical injuries, loss of freedom, loss of enjoyment of life, had his civil rights violated, severe and

permanent emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, shame, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION

FOR POLICE BRUTALITY, ASSAULT AND BATTERY,
ON BEHALF OF Plaintiff, CURTIS JACKSON

78. Plaintiff, CURTIS JACKSON, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 77, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.
79. That at all relevant times herein, defendants, their agents, servants, and/or employees were under a duty to protect plaintiff, CURTIS JACKSON, from the violation of his civil rights, menacing, assault, battery, excessive force, brutality, and/or other intentional acts, negligence, recklessness and/or want of care in his detention and/or arrest by the defendants who committed the aforesaid acts.
80. That at all relevant times herein, defendants, their agents, servants and/or employees menaced, assaulted, battered, and

used excessive force, maliciousness and brutality in the arrest, detention, and custody of Plaintiff, CURTIS JACKSON

81. That at all relevant times herein, defendants, their agents, servants, and/or employees caused Plaintiff, CURTIS JACKSON to reasonably apprehend that he was about to be harmfully and offensively contacted in his arrest and detention.
82. That at all relevant times herein, defendants, their agents, servants and/or employees offensively contacted and harmed Plaintiff, CURTIS JACKSON, during his arrest and detention.
83. That at all relevant times herein, defendants, their agents, servants and/or employees acted in an unsafe and unreasonable manner in the arrest, detention and custody of infant Plaintiff, CURTIS JACKSON, under the circumstances and conditions then and there existing.
84. That at all relevant times herein, defendants, their agents, servants and/or employees were negligent, reckless and intentional in their failure to protect Plaintiff, CURTIS JACKSON, from the violation of his civil rights, menacing, assault, battery, excessive force and brutality in his arrest and/or detention.

85. Plaintiff, CURTIS JACKSON, is not subject to limitations of Article 16 of the CPLR pursuant to exclusions therein.
86. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Plaintiff, CURTIS JACKSON, suffered injuries including but not limited to severe and permanent personal physical injuries, loss of freedom, loss of enjoyment of life, had his civil rights violated, severe and permanent emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, shame, lost earnings, medical expenses and legal expenses and claims damages for aforesaid injuries and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION

FOR FALSE ARREST,
ON BEHALF OF Plaintiff, CURTIS JACKSON

87. Plaintiff, CURTIS JACKSON, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 86, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.
88. Plaintiff, CURTIS JACKSON, is not subject to the limitations

of Article 16 of the CPLR pursuant to exclusions therein.

89. That solely as a result of the unlawful, unwarranted, unjustified and false arrest of plaintiff, CURTIS JACKSON, and the negligence, recklessness and/or intentional acts of defendants as aforesaid, plaintiff, CURTIS JACKSON, suffered injuries including but not limited to severe and permanent personal physical injuries, loss of freedom, loss of enjoyment of life, had his civil rights violated, severe and permanent emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, shame, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR AN EIGHTH CAUSE OF ACTION

FOR UNLAWFUL IMPRISONMENT,
ON BEHALF OF Plaintiff, CURTIS JACKSON

90. Plaintiff, CURTIS JACKSON, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 89, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.
91. Plaintiff, CURTIS JACKSON, is not subject to the limitations of Article 16 of the CPLR pursuant to exclusions therein.

92. That solely as a result of the unlawful, unwarranted and unjustified imprisonment of the plaintiff, CURTIS JACKSON, and the negligence, recklessness, and/or intentional acts of defendants as aforesaid, plaintiff, CURTIS JACKSON, suffered injuries including but not limited to severe and permanent personal physical injuries, loss of freedom, loss of enjoyment of life, had his civil rights violated, severe and permanent emotional injuries, sever and permanent psychological injuries, anguish, distress, humiliation, embarrassment, shame, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries ad accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A NINTH CAUSE OF ACTION

FOR MALICIOUS PROSECUTION,
ON BEHALF OF Plaintiff, CURTIS JACKSON

93. Plaintiff, CURTIS JACKSON, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 92, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

94. Plaintiff, CURTIS JACKSON, is not subject to the limitations of Article 16 of the CPLR pursuant to exclusions therein.

95. That solely as a result of the malicious prosecution of

Plaintiff, CURTIS JACKSON, by the defendants, their agents, servants and/or employees as aforesaid and the negligence, recklessness and/or intentional acts of defendants as aforesaid, Plaintiff, CURTIS JACKSON, suffered injuries including but not limited to severe and permanent personal physical injuries, loss of freedom, loss of enjoyment of life, had his civil rights violated, severe and permanent emotional injuries, sever and permanent psychological injuries, anguish, distress, humiliation, embarrassment, shame, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries and accordingly has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A TENTH CAUSE OF ACTION

FOR PUNITIVE DAMAGES,
ON BEHALF OF Plaintiff, CURTIS JACKSON

96. Plaintiff, CURTIS JACKSON, repeats, reiterates and realleges each and every allegation set forth in paragraphs 1 through 95, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.
97. Plaintiff, CURTIS JACKSON, is not subject to limitations of Article 16 of the CPLR pursuant to exclusions therein.
98. Due to the above, Plaintiff, CURTIS JACKSON, should be awarded

punitive damages as against defendants, **CITY OF NEW YORK, POLICE OFFICER JOHN FABRIZIO (Shield no. 24129, 121nd PRECINCT and POLICE OFFICERS JOHN DOE #1 THROUGH #5**, in an amount exceeding the jurisdictional limits of all lower Courts, which would otherwise have jurisdiction.

WHEREFORE, Plaintiff, CURTIS JACKSON, demands judgment against the defendants stated herein under the **First Cause of Action** in an amount exceeding the jurisdictional limits of all lower Courts, which would otherwise have jurisdiction over this matter; under the **Second Cause of Action** in an amount exceeding the jurisdictional limits of all lower Courts, which would otherwise have jurisdiction over this matter; under the **Third Cause of Action** in an amount exceeding the jurisdictional limits of all lower Courts, which would otherwise have jurisdiction over this matter; under the **Fourth Cause of Action** in an amount exceeding the jurisdictional limits of all lower Courts, which would otherwise have jurisdiction over this matter; and under the **Fifth Cause of Action** in an amount exceeding the jurisdictional limits of all lower Courts, which would otherwise have jurisdiction over this matter; under the **Sixth Cause of Action** in an amount exceeding the jurisdictional limits of all lower Courts, which would otherwise have jurisdiction over this matter; under the

Seventh Cause of Action in an amount exceeding the jurisdictional limits of all lower Courts, which would otherwise have jurisdiction over this matter; under the **Eighth Cause of Action** in an amount exceeding the jurisdictional limits of all lower Courts, which would otherwise have jurisdiction over this matter; under the **Ninth Cause of Action** in an amount exceeding the jurisdictional limits of all lower Courts, which would otherwise have jurisdiction over this matter; and under the **Tenth Cause of Action** in an amount exceeding the jurisdictional limits of all lower Courts, which would otherwise have jurisdiction over this matter; together with the costs and disbursements of this action.

Dated: New York, New York
September 26, 2022

Yours, etc.

BERNSTONE and GRIECO, LLP

By: LISA LYNN GRIECO, ESQ.

Attorneys for Plaintiff

295 Madison Avenue, 25th floor

New York 10007

(212) 532-1200

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

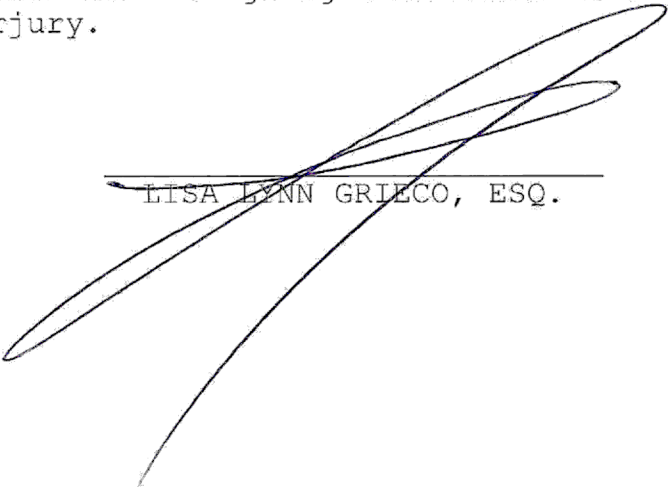
The undersigned, an attorney admitted to practice in the Courts of the State of New York, shows that affirmant is associated with the attorneys of record for the plaintiff in the within action, that deponent has read the foregoing **SUMMONS & COMPLAINT** and knows the contents thereof; that the same is true to affirmant's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, affirmant believes it to be true.

Affirmant further says that the reason this verification is made by affirmant and not by the plaintiff herein is that plaintiff is not a resident of the County in which affirmant maintains his office.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are as follows: Documents in affirmant's file and conversations with plaintiffs.

The undersigned affirms that the foregoing statements are true, under the penalties of perjury.

DATED: New York, New York
 September 26, 2022



LISA LYNN GRIECO, ESQ.

INDEX NO.: /22
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

YEAR 2022

CURTIS JACKSON,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER JOHN FABRIZIO (Shield no. 24129)
and POLICE OFFICERS JOHN DOE #1 THROUGH #5,

Defendants.

SUMMONS & VERIFIED COMPLAINT

BERNSTONE and GRIECO, LLP
Attorneys for the Plaintiff(s)
295 Madison Avenue 25th Fl.
New York, NY 10017
(212) 532-1200

[] NOTICE OF ENTRY

Sir: Please take notice that the within is a true copy duly entered in the office of the Clerk of the within named Court on , 2020.

[] NOTICE OF SETTLEMENT

Sir: Please take notice that the within is a true copy and will be presented for settlement to the Hon. one of the Justices of the within named Court, at on ,2020 at 10:00 A.M.

Dated: New York, New York

Yours, etc.,

BERNSTONE and GRIECO, LLP
By: LISA LYNN GRIECO, ESQ.
Attorneys for Plaintiff(s)
295 Madison Avenue 25th Fl.
New York, NY 10017
(212) 532-1200